

STATE OF NEW YORK

8342--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. ROMERO -- read once and referred to the Committee on Cities -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 885 of the laws of 1953 authorizing the city of Albany to discontinue the use of certain park lands for the purpose of using such lands for public school purposes, in relation to authorizing the use of such lands for any school purposes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 1 of chapter 885 of the laws of 1953 authorizing
2 the city of Albany to discontinue the use of certain park lands for the
3 purpose of using such lands for public school purposes, is amended to
4 read as follows:

5 Section 1. [~~Notwithstanding any inconsistent general, special or local~~
6 ~~law,~~] Subject to the provisions of this act, the city of Albany, acting
7 by and through its governing body, may discontinue as park lands and
8 sell and convey at fair market value four and one-half acres of land
9 within the hereinafter described bounds and heretofore acquired and used
10 by such city for park purposes and constituting a portion of the park
11 commonly known as Lincoln Park, in the city of Albany, for the purpose
12 of using such lands for [~~public~~] any school purposes and the
13 construction of [~~public~~] any school buildings, including streets for
14 ingress and egress.

15 § 2. Chapter 885 of the laws of 1953 authorizing the city of Albany to
16 discontinue the use of certain park lands for the purpose of using such
17 lands for public school purposes, is amended by adding two new sections
18 1-a and 2-a to read as follows:

19 § 1-a. The authorization contained in section one of this act shall
20 only be effective on the condition that the city of Albany dedicate an
21 amount equal to or greater than fair market value of the parklands being
22 discontinued pursuant to section one of this act towards the acquisition

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 of new parklands and/or capital improvements to existing park and recre-
2 ational facilities.

3 § 2-a. In the event that the city of Albany received any funding
4 support or assistance from the federal government for the purchase,
5 maintenance, or improvement of the parklands set forth in section two of
6 this act, the discontinuance and alienation of such parklands authorized
7 by the provisions of this act shall not occur until the city of Albany
8 has complied with any federal requirements pertaining to the alienation
9 or conversion of parklands, including satisfying the secretary of the
10 interior that the alienation or conversion complies with all conditions
11 which the secretary of the interior deems necessary to assure the
12 substitution of other lands shall be equivalent in fair market value and
13 usefulness to the lands being alienated or converted.

14 § 3. This act shall take effect immediately.